THE COURT OF APPEALS OF THE STATE OF WASHINGTON

DIVISION ONE

STATE OF WASHINGTON, Respondent, v. J.W.M., Appellant.	No. 82604-2-I

ON APPEAL FROM THE SUPERIOR COURT OF THE STATE OF WASHINGTON FOR KING COUNTY

MOTION FOR ACCELERATED REVIEW OF MANIFEST INJUSTICE DISPOSITION

NANCY P. COLLINS
Attorney for Appellant
WASHINGTON APPELLATE PROJECT
1511 Third Avenue, Suite 610
Seattle, WA 98101
(206) 587-2711

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A. INTRODUCTION.

J.W.M. fled to the United States as a 13 year old refugee, escaping from violent circumstances in Kenya. He suffers from post-traumatic stress disorder (PTSD) and attention deficient hyperactivity disorder (ADHD), exacerbated by poverty and his parents' volatile relationship.

When he was 17 years old, he mistakenly shot his friend while playing with a gun. He was convicted of second degree manslaughter. The prosecution sought a manifest injustice sentence in juvenile court, but did not give J.W.M. notice of the factual allegations necessary for this enhanced sentence as constitutionally required, violating his right to due process.

The court sentenced J.W.M. to the maximum allowed for any juvenile, holding him until his 25th birthday. Its primary reason was J.W.M.'s need for services. However, a child's need for services is not a valid basis for an exceptional sentence. The court also failed to weigh mitigating factors, used unproven allegations, and complained about J.W.M.'s criminal history

that is included in the standard range. It did not file timely findings of fact. It misunderstood its authority to impose this lengthy sentence. A standard range sentence should be ordered on remand.

B. STATEMENT OF RELIEF SOUGHT

J.W.M. seeks accelerated review, pursuant to RCW 13.40.230 and RAP 18.13, of the manifest injustice disposition imposed on April 30, 2021, ordering him to remain incarcerated until his 25th birthday on December 19, 2025. CP 18. This Court should reverse and vacate the manifest injustice disposition.

C. STATEMENT OF RELEVANT FACTS

On July 8, 2018, J.W.M. was "screwing around" with his friends and playing with a gun without realizing it was loaded. CP 41; RP 40. When he pointed it at his friend and pulled the trigger, a shot fired and killed his friend. CP 41. J.W.M. was 17 years old when this occurred. *Id.*

J.W.M. came to the United States as a refugee from Kenya when he was 13 years old, after his father sought asylum. CP 57. He had "a lot of terrifying experiences" and traumatic events in his childhood, suffering from persistent fear and exposure to violence and death. CP 57, 73, 105. His struggle adjusting to the United States was exacerbated by his poverty and his parents' intense, alcohol fueled fighting. CP 73, 75. His childhood trauma caused both PTSD and ADHD. CP 70-73.

When J.W.M. was 15, he was convicted of robbery in the first degree and residential burglary. CP 30. He was sentenced to 103 to 129 weeks in the JRA and spent his 11th and 12th grade school years there. CP 30, 32, 45; Juvenile Probation Counselor Report at 8.[1] The incident with his friend occurred about four months after J.W.M. returned home from this JRA sentence.

[1] A motion to file this confidential report is pending in this Court.

The prosecution initially charged J.W.M. with unlawful possession of a firearm in the first degree in juvenile court. CP 4. It amended the charge to add manslaughter in the first degree, with a firearm enhancement, which automatically moved the case to adult superior court. CP 35-36.

A jury convicted J.W.M. of the lesser offenses of manslaughter in the second degree. CP 37. The case was transferred back to juvenile court for sentencing because the adult court lacks jurisdiction over this offense committed by a child. RP 2-3.[2]

J.W.M. remained in the King County jail from 2018 through his 2021 trial and sentencing. RP 26. By the time of sentencing, he had been in jail for 1,011 days, or close to three years. RP 45-46.

The standard range for a child convicted of manslaughter in the second degree with a firearm is local sanctions up to 30

[2]The verbatim report of proceedings from the sentencing hearing on April 30, 2021 is referred to as "RP."

days in jail with a consecutive 12-month firearm enhancement. Def Sent Memo. Unlawful possession of a firearm in the first degree has a standard range of 15-36 weeks. By the time of sentencing, J.W.M. was 20 years old and had been held in custody far longer than the standard range. RP 35-36.

The prosecution asked the court to impose a manifest injustice disposition holding J.W.M. in custody until he is 25 years old. It claimed the standard range was clearly too lenient, that J.W.M. had recent scored and unscored criminal history, and his prior JRA detention had not changed "his cavalier and dangerous behavior." Supp. CP - . sub. no. 121, p. 3.

The juvenile probation counselor Gabrielle Pagano admitted she had not paid close attention to the trial, but was very concerned J.W.M. had been in the King County jail for a long time due to COVID-related trial delays. RP 26-27. "[W]hile he's been in the King County Jail, he's received no treatment. He's received no counseling, to my knowledge – you know, mental health, to help him deal with and process through

the death of his friend." RP 26. Ms. Pagano agreed there was a basis for a manifest injustice disposition. RP 28.

Defense counsel argued the court lacked authority to impose this sentence and the standard range should be ordered. RP 9-11. A caseworker from Community Passageways advised the court he would serve as a mentor for J.W.M., helping him adjust to the community. RP 30-33. J.W.M.'s father assured the court of his son's cooperation on release. RP 34.

J.W.M. apologized for the pain he caused. RP 35. He told the court he was "not the same" person he was when the incident happened. RP 35. While he was in jail, he became a father and was trying to help raise his son, who visited him in jail. CP 48, 66. During the three years he had been in jail, he "worked on" himself "really hard," and had to live with what he did for the rest of his life. RP 35. He wanted to show he was a "better man" now. *Id.*

The court imposed a manifest injustice disposition that requires J.W.M. held in custody until his 25th birthday, without

the possibility of early release or probation services. RP 44, 47. The prosecutor said he would prepare written findings and asked the court if it's "primary finding is – the basis is the need for –." RP 49. The Court interrupted and said, "Services. . . . The need for services and criminal history." *Id.*

J.W.M. filed a notice of appeal on April 30, 2021, the same day as the sentencing hearing. CP 23. Appellate counsel was appointed on May 5, 2021. J.W.M.'s trial attorney filed a notice of withdraw on May 18, 2021. CP 142. The prosecutor filed written findings of fact on July 2, 2021. CP 30. The findings bear a typewritten signature from the trial attorney under "approved as to form." CP 34.

E. ARGUMENT.

1. The court violated J.W.M.'s right to due process by imposing a manifest injustice disposition far exceeding the standard range when he never received notice he faced this added punishment.

a. The prosecution is constitutionally mandated to provide advance notice of its intent to seek a manifest injustice disposition

The constitutional right to due process of law entitles children to meaningful advance notice of aggravating factors the prosecution will use to pursue a sentence greater than the standard range. *State v. D.L.*, 197 Wn.2d 509, 519, 484 P.3d 448 (2021); *State v. M.S.*, 197 Wn.2d 453, 471, 484 P.3d 1231 (2021); U.S. Const. amend. XIV; Const. art I, § 3.

As a matter of basic due process, children must receive "adequate notice of the alleged misconduct with particularity" and this notice "must be given sufficiently in advance of scheduled court proceedings" to afford a "reasonable opportunity to prepare." *D.L.*, 197 Wn.2d at 514 (quoting *In re Gault*, 387 U.S. 1, 33, 87 S. Ct. 1428, 18 L. Ed. 2d 527 (1967).

The right to notice extends to the facts that will be used to support a manifest injustice disposition. *Id.* at 514, 519.

"The quintessential requirement" of the notice due process requires is that it "must be given at a sufficiently meaningful time." *Id.* at 515. Advance notice of the factual allegations underlying aggravated punishment is necessary for the accused person "to prepare a strategy" and "most effectively meet the charges." *Id.* It is critical to receive this information as early as possible because this notice "allows the defendant to answer the threshold question of whether to plead guilty or proceed to trial," and then prepare to mount a defense. *Id.*

This notice must be specific enough to apprise the accused person of the facts the prosecution needs to establish. *Id.* at 515-16. For example, it violates due process for the prosecution to ask the court to impose a firearm sentencing enhancement when it gave notice of a deadly weapon sentencing enhancement, even if the facts would have supported the firearm enhancement. *Id.* at 516 (citing *State v.*

Recuenco, 163 Wn.2d 428, 431-32, 441, 180 P.3d 1276 (2008)). Without accurate notice of the particular factual grounds on which the prosecution will seek increased punishment, an accused person cannot prepare a trial strategy, make necessary tactical decisions, or have the "opportunity to mount an adequate defense." *Id.* at 519.

When children are charged as adults, the prosecution must provide "notice of all aggravating factors before they begin trial or enter a plea." *Id.* at 515; RCW 9.94A.537(1). After the prosecution rests its case, it cannot add more serious charges or seek additional punishment. *Id.* at 515-16. Any fact that increases punishment, including whether criminal history renders the standard range clearly too lenient, must be properly charged in advance of trial. *See State v. Alvarado*, 164 Wn.2d 556, 565-67, 192 P.3d 345 (2008) (holding "clearly too lenient" sentencing finding is factual determination subject to pleading and proof requirements of *Blakely v. Washington*, 542 U.S. 296, 124 S. Ct. 2531, 159 L. Ed. 2d 403 (2004)). "[S]urprise tactics

deprive defendants of making a sufficiently informed decision whether to plead or continue to trial." *D.L.*, 197 Wn.2d at 516.

Providing due process to children accused of a crime is one of the "equally important purposes" of the Juvenile Justice Act. *M.S.*, 197 Wn.2d at 461 (quoting RCW 13.40.010(2)(e)). Children "must have preplea notice of the facts and aggravating factors supporting manifest injustice dispositions." *Id.* at 471. Generic information about the court's authority to impose a manifest injustice disposition is not constitutionally adequate notice of the factual grounds on which the court may impose an exceptional sentence. *D.L.*, 197 Wn.2d at 512; *M.S.*, 197 Wn.2d at 457.

The constitutional right to notice dictated by *D.L.* and *M.S.* applies to J.W.M. and may be raised for the first time on appeal, as it was in both *D.L.* and *M.S. See State v. Peters*, 16 Wn. App. 2d 454, 462, 486 P.3d 925 (2021) ("a question of constitutional due due process (notice) . . . may be raised for the first time on appeal").

Mandating the prosecution give meaningful advance notice is not too heavy a burden "as to outweigh the fundamental fairness of providing notice" before the entry of a plea or start of trial. *M.S.*, 197 Wn.2d at 466-67.

b. The prosecution did not provide the constitutionally required notice of its intent to seek increased punishment above the standard range.

The prosecution did not provide J.W.M. with advance notice of its intent to seek increased punishment above the standard range. It sought a manifest injustice disposition after J.W.M. was convicted. Supp. CP - , sub. no. 121. The lack of constitutionally mandated notice violates J.W.M.'s right to due process.

The prosecution does not avoid its obligation to comply with due process notice requirements by filing a charge of first degree manslaughter that automatically moved the case to adult superior court. The due process right to meaningful notice applies in both adult and juvenile court. *D.L.*, 197 Wn.2d at 515.

The prosecution cannot claim to be surprised J.W.M.'s case returned to juvenile court. No one alleged J.W.M. acted intentionally, and the crux of the prosecution was whether he was reckless, negligent, or it was wholly accidental. CP 41. Once the jury found he was negligent as required for second degree manslaughter, the law required the case return to juvenile court. RP 2-3. The prosecution does not avoid its due process obligations by bringing a charge in adult court and then automatically seeking a maximum sentence in juvenile court when they fail to prove that greater charge. It is not too "heavy a burden" for the prosecution to provide alternative notice of the punishment it will seek depending on the outcome of the trial. *See M.S.*, 197 Wn.2d at 466-67.

J.W.M. did not receive advance notice of the aggravating factors the prosecution used to seek a manifest injustice disposition. While he knew of his criminal history, that criminal history is part of the standard range calculation. RCW 13.40.0347. It does not justify a manifest injustice disposition.

See, e.g, Alvarado, 164 Wn.2d at 565-67. Before trial, the prosecution never alleged his need for treatment constituted a clear and serious danger or his recent criminal offenses made the standard range clearly too lenient, which are necessary factual findings for a manifest injustice disposition.

He is "entitled to adequate notice" of the basis of the aggravating factor "with particularity" in advance of his trial and did not receive it. *D.L.*, 197 Wn.2d at 514.

c. The lack of notice undermines the court's authority to impose a manifest injustice disposition.

The State deprived J.W.M. of his right to notice by failing to give him sufficient information about the underlying allegations it would use to pursue a manifest injustice disposition at a meaningful time before trial. *D.L.*, 197 Wn.2d at 515-16. Because J.W.M. did not receive notice of the prosecution's intent to pursue punishment above the standard range based on additional factual allegations, the court lacked authority to increase his punishment beyond the standard range based on additional factual findings. The manifest injustice

sentence must be reversed and the case remanded for a standard range sentence.

2. The court improperly imposed a manifest injustice disposition based on the benefits of treatment.

a. The need for treatment is not a valid aggravating factor justifying an manifest injustice disposition.

A court may not impose a manifest injustice disposition for purposes of providing a child with treatment. *State v. B.O.J.*, 194 Wn.2d 314, 325, 449 P.3d 1006 (2019). The court's belief that the standard range does not give "sufficient time" for the child to complete needed services, or that the child will not engage in these services in the community, do not justify departing from the standard range. *Id.* The need for treatment is "not an appropriate basis for imposing a manifest injustice disposition." *Id.*

A manifest injustice disposition must rest on factors that pose a "serious, and clear danger to society." *Id.*; RCW 13.40.020(19); RCW 13.40.160(2). In *B.O.J.*, the defendant was a child with a serious substance abuse problem who also needed

mental health services. 194 Wn.2d at 318. She repeatedly ran away from her foster care placements and had no available parent. *Id.* at 317. She needed lengthy services and lacked community support, so the court imposed a manifest injustice disposition. *Id.* at 325-26.

The Supreme Court rejected the trial court's manifest injustice disposition. It ruled that the fact B.O.J. would benefit from treatment services does not justify incarcerating her. *Id.* at 327. A manifest injustice disposition must rest on proof the child presents a "serious, and clear danger" to identified people in the community, not that the child will personally benefit from JRA services or will be in a more dangerous position without treatment. *Id.* B.O.J.'s counseling needs related to her traumatic childhood experiences and use of "personally harmful" substances did not constitute the required serious, and clear danger to society for a manifest injustice disposition. *Id.* at 326.

b. The court's "main reason" for a manifest injustice disposition involved the need for counseling and treatment services.

Similar to *B.O.J.*, the court cited J.W.M's need for services and treatment as the primary reason for imposing a manifest injustice disposition. RP 49.

J.W.M. had been in the King County jail since 2018 and, as the probation officer explained, "he's received no treatment" or counseling to help him deal with his friend's death. RP 29. He did not get services for substance abuse issues, although he had been sober while in custody. *Id.*; CP 59-60.

The court explained its sentencing decision as based on J.W.M.'s need for "rehab and reintegration" and he got "nothing" while in jail. RP 43. "I believe what [J.W.M.] needs is services. He needs treatment; he needs to have his PTSD addressed, he needs to have his ADHD addressed, he needs to have his substance abuse addressed." RP 42. The court said that under the standard range, "he gets nothing" in terms of treatment and there would be no guarantee "that there will be

any change in him to stop this from happening again." RP 43. "[I]f he is released on the standard range he will be out in the community with no treatment and no hope of getting better." RP 43.

The court admitted its "main reason" for holding J.W.M. in custody until he is 25 years old is because of a "young person's brain" and the "JRA, in this particular case, is the place where that can be best addressed." RP 44.

After announcing her sentence, the judge said to J.W.M., "I think that additional time in JRA hopefully will get you the family counseling that you need, the substance abuse treatment, the counseling for your mental issues" and the other treatment needs identified by the probation counselor and psychologist Dr. Judd. RP 44.

The court's written findings echo this oral ruling. It found J.W.M. "will not succeed in necessary mental health and substance abuse treatment in the community." CP 31 (Finding of Fact 7). It found, "without such treatment, the respondent

would pose a danger to the community." *Id.* (Finding of Fact 8). It found that since J.W.M. had served the entirety of the standard range while in jail during the pendency of his case, without a manifest injustice disposition, he would be released into the community, which would not "provide the respondent with any treatment for his mental health and substance abuse issues." CP 32 (Finding of Fact 15). It concluded that his "mental health challenges (PTSD and ADHD) and substance abuse issues will require more treatment and counseling than can be accomplished during the standard range sentence" and "[t]his is a basis to depart from the standard range." CP 33 (Conclusion of Law 3(b)).

J.W.M.'s treatment needs stemmed from the traumatic circumstances of his childhood. CP 73-75. He witnessed many horrors while growing up in Kenya and arrived in to the United States as a refugee when a young teenager. *Id.* His substance abuse was in remission due to his extended stay in jail, but before the incident he had used marijuana and some other

controlled substances such as Xanax and codeine. CP 59-60. Like *B.O.J.*, J.W.M. would benefit from treatment, but his mental health and substance abuse issues did not make him a serious and clear danger of harming members of the community. 195 Wn.2d at 326.

The court also did not account for the fact that J.W.M. had been in custody for almost three years by the time the court sentenced him. He was 17 years old when he was arrested and 20 years old when the court sentenced him. RP 35-36. There is no allegation he misbehaved while in jail or had trouble controlling his behavior to the degree necessary to pose a clear danger to society. He was convicted of acting with negligence, not purposefully or even recklessly. The benefits of treatment and services for someone like J.W.M. who had many traumatic childhood experiences do not justify treatment as a basis for a manifest injustice disposition. *B.O.J.*, 195 Wn.2d at 326.

c. The invalidity of this aggravating factor undermines the manifest injustice sentence imposed.

As *B.O.J.* also noted, empirical studies offer a "cautionary tale," showing extended incarceration of children "either fail to reduce or actually increase recidivism." 195 Wn.2d at 327 (citing Sarah Cusworth Walker & Asia Sarah Bishop, *Length of Stay, Therapeutic Change, and Recidivism for Incarcerated Juvenile Offenders*, 55 J. of Offender Rehabilitation 355, 371 (2016)).

The court relied on J.W.M.'s treatment needs to justify both the imposition of the manifest injustice sentence and its length. This is not a permissible aggravating factor. While the court's written findings also generically state, "Either one of these conclusions about aggravating circumstances is a substantial and compelling reason, standing alone, sufficient to justify the length of the disposition imposed," the court candidly admitted its primary motivation was to have the JRA give J.W.M. services. RP 49; *see* CP 33-34.

Had the court understood it may not incarcerate J.W.M. because he would receive family counseling, mental health services, and substance abuse treatment, it is likely the court would not have imposed this sentence. *See B.O.J.* 194 Wn.2d at 329 (despite court nominally stating other justifications for manifest injustice, the court was unconvinced it would have imposed a manifest injustice disposition in the absence of B.O.J.'s treatment needs). This Court should remand the case back to the sentencing court for it to reconsider the disposition.

3. The court improperly relied on unproven and uncharged conduct to impose a manifest injustice disposition.

a. Aggravating factors must be related to the offense and may not be based on the court's determination of conduct that was not proven at trial.

To exceed the standard range, the court must find the standard range presents "a serious, and clear danger to society in light of the purposes" of the Act. RCW 13.40.020(19). The court's findings "shall be supported by clear and convincing evidence." RCW 13.40.160(2).

On review, the disposition court's reasoning is held to a "stringent standard." *State v. Payne*, 58 Wn. App. 215, 219, 795 P.2d 134 (1990). This Court will reverse a manifest injustice disposition unless it finds: "(a) that the reasons supplied by the disposition judge are supported by the record which was before the judge and that those reasons clearly and convincingly support the conclusion that a disposition within the range would constitute a manifest injustice, and (b) that the sentence imposed was neither clearly excessive nor clearly too lenient." RCW 13.40.230(2) (emphasis added).

Any aggravating factor used to justify a manifest injustice sentence must "relate to the crime itself." *M.S.*, 197 Wn.2d at 466. They must be facts available at the outset of the case, not based on later behavior. *Id.*

The JJA was enacted with the intent that the "presumptive sentencing scheme" would hold young people accountable their offenses, based on the nature and frequency of prior offenses. Mary Kay Becker, *Washington State's New*

Juvenile Code: An Introduction, 14 Gonz. L. Rev. 289, 308 (1979). It was intended to correct the prior practice of sentencing juveniles "on the basis of their social background and need for treatment" as opposed to the criminal offenses committed. *Id.* at 293-95, 308.

"Generally, a standard range disposition will be adequate to achieve the goals of the Juvenile Justice Act, including the goal of rehabilitation." *State v. Tai N.*, 127 Wn. App. 733, 745, 113 P.3d 19 (2005).

Courts cannot ignore the effects of incarceration on children when imposing a manifest injustice disposition. Being held in total confinement exposes youth to sexual violations or physical abuse. Allen Beck, *Sexual Victimization in Juvenile Facilities Reported by Youth, 2012*, U.S. Department of Justice, 9 (2013) (documenting sexual victimization of youth in state facilities)[3]; Holbrook Moore, *AP: 13K Claims of Abuse in Juvenile Detention Since '04* (2008) (close to half of youth

[3]https://www.bjs.gov/content/pub/pdf/svjfry12.pdf

confined in secure facilities reported unnecessary force; one-third reported solitary confinement used as discipline tool).[4]

The negative consequences of incarceration are particularly acute for young people who enter the justice system with behavioral health problems. "Far from receiving effective treatment, young people with behavioral health problems simply get worse in detention, not better." Justice Policy Inst., *The Dangers Of Detention: The Impact Of Incarcerating Youth In Detention And Other Secure Facilities* 8 (2006).[5]

b. The court imposed a manifest injustice disposition based on facts already used to create the standard range and unproven allegations.

i. The court disagreed with the standard range.

Courts may not depart from the standard range based on factors already considered by the legislature. *State v. Pascal*, 108 Wn.2d 126, 137, 736 P.2d 1065 (1987). "[T]he Legislature specifically considered criminal history when establishing standard sentencing ranges." *State v. Freitag*, 127 Wn.2d 141,

[4]https://usatoday30.usatoday.com/news/nation/2008-03-02-juveniledetention_N.htm

[5]http://www.justicepolicy.org/research/1978

145, 896 P.3d 1254 (1995); *see also State v. Rogers*, 112 Wn.2d 180, 183, 770 P.2d 180 (1989) ("criminal history is one of the components used to compute the presumptive range for an offense"). "The trial court's disagreement with the legislature's determinations cannot justify a departure." *State v. Law*, 154 Wn.2d 85, 101, 110 P.3d 717 (2005).

The court repeatedly expressed dismay about the length of the standard range for second degree manslaughter. RP 39, 40-41. It described the standard range as "odd" and said "it makes no sense to me," even if that was the law. RP 40-41. Disagreement with the standard range is not a basis for imposing a manifest injustice disposition.

ii. The court misunderstood the inclusion of misdemeanors in J.W.M.'s criminal history.

The court relied on the aggravating factor that J.W.M. faced other complaints resulting in a finding of guilt that were not included as criminal history, citing J.W.M.'s convictions for fourth degree assault and harassment. CP 31-32 (Finding of Fact 11); *see* CP 33 (Conclusion of Law 3(a), (d)). But both of

these offenses did count in J.W.M.'s criminal history. By statute, these gross misdemeanors are scored as ¼ point each, and any amount below one is rounded down. RCW 13.40.0357. The Legislature decided that a child must be convicted of more than two gross misdemeanors for them to add a full point to a child's offender score. *Id.*

Despite the legislature's determination of how misdemeanors will be scored in a person's criminal history, the court insisted it was "very concerning" that these misdemeanor offenses were not included as criminal history. CP 32 (Finding of Fact 11). Contrary to the court's finding, these offenses were considered by the legislature in setting the standard range and counted as criminal history, even if J.W.M.'s prior convictions did not add up to a full point under RCW 13.40.0357. Disagreement with the legislature's classification and scoring decisions is not a basis to depart from the standard range.

iii. The court repeatedly referred to allegations that did not result in convictions.

Several of the court's written findings of fact refer to offenses J.W.M. was not convicted of committing. In Finding of Fact 11, it states J.W.M.'s misdemeanor assault and harassment convictions were "originally charged" as second degree assault and felony harassment. CP 31-32. In Findings of Fact 10 and 12, the court states the standard range is too lenient due in part to "pending charges of first degree robbery and intimidating a witness." CP 31-32. In Finding of Fact 13, it notes J.W.M. was on pretrial release for "his pending assault in the second degree charge" when he committed the current offense, without mentioning that J.W.M. was not convicted of assault in the second degree. CP 32.

And regarding the manslaughter allegation, the court repeatedly said it thought J.W.M. acted recklessly, even though the jury convicted him of committing a negligent act. RP 40, 43.

In Conclusion of Law 3(a), the court found J.W.M. has "continuing, uncharged and dismissed criminal conduct," which showed the standard range was clearly too lenient. CP 33. In Conclusion of Law 3(c), the court summarily asserted "[a]lmost all" of J.W.M.'s prior criminal matters involve stealing or attempted stealing of property from others, many times result in the respondent inflicting harm on that person or threatening that person with harm." *Id.* This conclusion of law is not supported by the court's factual findings. The findings do not describe J.W.M. as repeatedly stealing property or "many times" threatening people with harm.

The offense for which the court imposed a manifest injustice disposition was a crime of negligence, where J.W.M. was unaware of the risk his conduct posed. The court may not substitute its belief J.W.M. committed a more serious offense with the jury's finding that the prosecution proved only negligence and not the recklessness required for first degree manslaughter.

The court improperly relied on allegations that were not proven, such as charges that had been filed and reduced, as well as pending charges for which J.W.M. was entitled to the presumption of innocence. The court appeared to take the unproven allegations as true, concluding they show he has "no regard for the property or safety of others." CP 33. The court's findings of fact and conclusions of law that use unproven claims to justify the exceptional sentence must be disregarded.

d. The court failed to weigh mitigating factors and imposed a manifest injustice sentence for impermissible reasons.

The court must consider mitigating factors before imposing a manifest injustice disposition. RCW 13.40.150(3). But the court barely acknowledged the substantial mitigating factors that explain J.W.M.'s difficult adjustment to the United States and did not mention them in its written findings other than to "adopt" what the probation counselor said. CP 31 (Finding of Fact 4, 5). It paid no attention to the poverty, stress, and fear that shaped in his childhood. Judd Rpt. It did not

recognize how his traumatic upbringing produced a "heightened emotional reactivity" or that he was "developmentally immature" due to his past experiences. CP 69, 73. It did not mention his ADHD likely stemmed from his "history of trauma," which helps explain his trouble regulating his behavior as a teenager. CP 72.

It failed to recognize that J.W.M. was also maturing. He had served close to three years in jail for this incident. He was 17 years old when he started his jail term and was 20 years old at the time of sentencing. RP 35-36. As he ages, his brain also becomes less impulsive. *State v. O'Dell*, 183 Wn.2d 680, 692, 358 P.3d 359 (2015). This maturation had already started for J.W.M., who became a father while incarcerated and hoped to continue his education and get employment to support his child and girlfriend. CP 66.

The court ordered J.W.M. to serve the maximum sentence possible based on inappropriate factors and factual allegations for which J.W.M. received no notice, while

disregarding mitigating evidence. The court's manifest injustice disposition may not stand. These errors undermine the sentence imposed and a standard range term should be ordered.

4. The court's invalidly entered findings of fact must be disregarded.

a. The court's findings of fact may not be relied upon when entered without notice to counsel of record.

When a juvenile court imposes a manifest injustice disposition, it must formally "enter its reasons for its conclusion" by filing written findings of fact and conclusions of law in any case where a notice of appeal is filed. *State v. I.N.A.*, 9 Wn. App. 2d 422, 425, 446 P.3d 175 (2019); RCW 13.40.160(2); JuCR 7.11(d). "The prosecution must submit such findings and conclusions within 21 days after receiving the juvenile's notice of appeal." *Id.* (quoting JuCR 7.11(d)).

Entering findings of fact is an important part of the case and the child retains the right to counsel during at this time. *I.N.A.*, 9 Wn. App. 2d at 427. In *I.N.A.*, the prosecution belatedly prepared written findings of fact and never notified

counsel of record. *Id.* This Court ruled the prosecution deprived I.N.A. of her right to counsel by failing to notify her attorney of the findings, and instead only notifying the prior trial attorney who no longer represented the child. *Id.* at 428-29.

In *I.N.A.*, this Court also reiterated the rule that "service upon a party's former lawyer 'does not excuse [the] failure to notify [a party's] appellate counsel, the only counsel of record at the time.'" *Id.* at 426 (quoting *State v. Pruitt*, 145 Wn. App. 784, 793, 187 P.3d 326 (2008)). This Court may disregard findings and conclusions that are "obtained without proper notice to counsel." *Id.*; *see also State v. Nava*, 177 Wn. App. 272, 289 n.6, 311 P.3d 83 (2013) ("failure to provide appellate counsel with notice of presentment [of findings of fact] as a courtesy is viewed with disfavor by our court"); *State v. Corbin*, 79 Wn. App. 446, 451, 903 P.2d 999 (1995) (even when trial counsel remains as counsel of record, notice should also be given to appellate counsel).

This Court may "disregard" findings that were not properly vetted by opposing counsel and entered without notice to appellate counsel. *I.N.A.*, 9 Wn. App. 2d at 426; *Nava*, 177 Wn. App. at 289 n.6 (because appellate counsel was not served, "[w]e choose to disregard the court's findings and conclusions").

As this Court recognized in *I.N.A.*, manifest injustice appeals are time-sensitive. They are addressed on an accelerated basis under RAP 18.13. Delay in a meritorious appeal may result in the child losing much or all of the benefit of the appeal. The prosecution's untimely findings and lack of notice to counsel undermine the right to appeal by delaying the proceedings.

b. The improperly obtained findings of fact should be disregarded.

Similar to *I.N.A.*, the prosecution belatedly prepared and submitted findings of fact to the court without notifying counsel of record.

This Court appointed the Washington Appellate Project as counsel for the appeal on May 5, 2021, and the undersigned counsel filed a notice of appearance on May 28, 2021. On the same day, appellate counsel filed a request for transcripts and designated the relevant clerk's papers. J.W.M.'s trial attorney withdrew from the case shortly after filing a notice of appeal on April 30, 2021. CP 142.

Unbeknownst to the undersigned counsel of record, the prosecution prepared written findings of fact that it presented to the judge. The findings are dated July 2, 2021, shortly before counsel's brief was due in this Court. CP 34. The prosecution did not contact appellate counsel despite counsel's formal filing of a notice of appearance and other documents necessary for the appeal. The findings of fact have a typewritten signature stating "approved as to form" with the names of the trial attorneys, who had formally withdrawn from representation. CP 34, 142.

Despite this Court's expression of frustration in *I.N.A.* with the prosecution's failure to give proper notice to counsel of

record in this accelerated appeal, the same prosecutor's office obtained belated findings of fact without notifying the attorney of record in this case.

This derogation of the court rules deprives J.W.M. of his right to counsel during an important stage in the proceedings and delays a time-sensitive sentencing appeal. This Court should disregard the improperly entered findings of fact.

5. The court imposed a sentence exceeding the statutory maximum.

The trial court ordered that J.W.M. must remain incarcerated until his 25th birthday. This sentence exceeded the statutory maximum term a court may impose.

The court "may not" incarcerate a child beyond the child's 21st birthday in most cases. RCW 13.40.300(1); *D.L.*, 197 Wn.2d at 514 ("the upward maximum of a manifest injustice disposition is confinement until age 21.").

The purpose of RCW 13.40.300 is to define the jurisdiction of the juvenile court. In section (1), it explains the

court may not order a child remain in juvenile custody after their 21st birthday, except as provided in section (2). Section (2) of RCW 13.40.300, provides that where a child was convicted of an "A++" category offense or the child was found to be armed with a firearm and sentenced to an additional 12 months under RCW 13.40.193(3)(b), the court may order a sentence up to the child's 25th birthday. J.W.M. was not convicted of an A++ offense; second degree manslaughter is a C+ category offense. RCW 13.40.0357. But J.W.M. was convicted of a firearm enhancement that has a 12 month term of confinement under RCW 13.40.193(3)(b).

The rest of the statute similarly addresses the court's jurisdiction over children in juvenile court. No part of it mentions manifest injustice dispositions. Section (3) sets out the limited circumstances where a child may remain under the jurisdiction of the juvenile court after their 18th birthday. Section (4) states that except as provided in this statute, the juvenile court may not extend jurisdiction over any child

beyond their 21st birthday. And section (5) states there are no circumstances where the juvenile court had jurisdiction when a person commits an offense after they turn 18 years old.

The court construed RCW 13.40.300(2) as an open invitation to sentence J.W.M. to remain in custody until his 25th birthday. However, this misconstrues the meaning and intent of RCW 13.40.300(2). RCW 13.40.300(2) says that if a person has "an additional twelve months" for a firearm enhancement, the court's sentencing authority allows the court to impose a sentence beyond the child's 21st birthday, up to their 25th birthday.

Penal statutes are strictly construed. *State v. Delgado*, 148 Wn.2d 723, 727, 63 P.3d 792 (2003). No word may be presumed to be superfluous, and courts "may not delete language from an unambiguous statute." *State v. Roggenkamp*, 153 Wn.2d 614, 624, 106 P.3d 196 (2005).

Under the provision that applies to J.W.M., this statute allows a judge to hold a child beyond their 21st birthday if

necessary to ensure the child serves an additional 12-month firearm enhancement. It does not automatically invite the court to hold the child in custody until he is 25 years old simply because a 12-month firearm sentence is being imposed.

The court's interpretation of RCW 13.40.300(2) runs counter to this Court's efforts to impress upon trial judges their discretion to impose mitigated sentences for juveniles and disregard mandatory terms. *See In re Pers. Restraint of Ali*, 196 Wn.2d 220, 236, 474 P.3d 507 (2020), *cert. denied sub nom. Washington v. Ali*, 141 S. Ct. 1754 (2021). It is contrary to the strict limits on a court's authority to sentence a child to a lengthy term after they become adults. RCW 13.40.300(2) does not refer to manifest injustice dispositions. It is intended for standard range terms that run beyond a child's 21st birthday in narrow circumstances and must be construed in favor of the defendant. *Delgado*, 148 Wn.2d at 727.

The court lacked authority to sentence J.W.M. to remain incarcerated until his 25th birthday. This sentence must be reversed and remanded for a standard range term.

F. CONCLUSION.

J.W.M. was improperly sentenced to a manifest injustice disposition holding him in custody until he turns 25 years old, without any possibility of parole. This sentence must be reversed and his case remanded for the imposition of a standard range term.

DATED this 23rd day of July 2021.

Counsel certifies this motion complies with RAP 18.17 and contains 6484 words, excluding the parts exempted by RAP 18.17(c).

Respectfully submitted,

/s/ NANCY P. COLLINS (28806)
Washington Appellate Project (91052)
Attorneys for Appellant
nancy@washapp.org
wapofficemail@washapp.org

DECLARATION OF DOCUMENT FILING AND SERVICE

I, MARIA ARRANZA RILEY, STATE THAT ON THE 23RD DAY OF JULY, 2021, I CAUSED THE ORIGINAL BRIEF OF APPELLANT TO BE FILED IN THE COURT OF APPEALS – DIVISION ONE AND A TRUE COPY OF THE SAME TO BE SERVED ON THE FOLLOWING IN THE MANNER INDICATED BELOW:

[X] KING COUNTY PROSECUTOR'S OFFICE
APPELLATE UNIT
[paoappellateunitmail@kingcounty.gov]
KING COUNTY COURTHOUSE
516 THIRD AVENUE, W-554
SEATTLE, WA 98104
E-SERVICE VIA PORTAL

[X] J.W.M.
MAPLE LANE SCHOOL
20311 OLD HWY 9 SW
CENTRALIA, WA 98531
U.S. MAIL

SIGNED IN SEATTLE, WASHINGTON THIS 23RD DAY OF JULY, 2021.

/s/ Maria Arranza Riley
Washington Appellate Project
1511 Third Avenue, Suite 610
Seattle, WA 98101
Phone (206) 587-2711
Fax (206) 587-2710